

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2124

By: Kannady

AS INTRODUCED

An Act relating to judges; requiring the Oklahoma Supreme Court establish an Office of Judicial Performance Evaluation and a Judicial Performance Evaluation Council; providing the purposes for the judicial evaluation process; requiring the Supreme Court appoint a director; authorizing director to hire certain employees; requiring the Administrative Office of the Court provide operational support; authorizing director to hire certain vendor; establishing certain duties of the Judicial Performance Evaluation Council; providing for certain report; requiring Supreme Court conduct certain review; requiring Supreme Court adopt rules for evaluating judicial performance; providing for confidentiality of certain information; requiring certain information be posted on Supreme Court website; providing for an annual report; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1671 of Title 20, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Supreme Court, under the general administrative authority over all Oklahoma courts as granted in Section 6 of Article VII of the Oklahoma Constitution, shall establish the Office

1 of Judicial Performance Evaluation within the Administrative Office
2 of the Courts. The Supreme Court shall also establish the Judicial
3 Performance Evaluation Council to administer the process for
4 reviewing the performance of judicial officers.

5 B. The purposes of the judicial evaluation process are to
6 provide:

7 1. Information on judicial performance to the residents of
8 Oklahoma and to judges;

9 2. Assist judges with opportunities for improving judicial
10 performance;

11 3. Identify needed judicial education programs; and

12 4. Promote goals of protecting judicial independence while
13 fostering public accountability of the judiciary.

14 SECTION 2. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1672 of Title 20, unless there
16 is created a duplication in numbering, reads as follows:

17 A. The Office of Judicial Performance Evaluation shall have a
18 director to be appointed by the Oklahoma Supreme Court. The
19 director shall hire one or more employees to assist the Judicial
20 Performance Evaluation Council in administration of the Judicial
21 Performance Evaluation process as defined by Supreme Court Rules.

22 B. The Administrative Office of the Courts shall provide
23 operational support to employees of the Office of Judicial
24 Performance Evaluation.

1 C. The Director of the Office of Judicial Performance
2 Evaluation shall have the ability to hire an outside vendor to
3 assist in the surveys established for evaluation of judicial
4 performance.

5 SECTION 3. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1673 of Title 20, unless there
7 is created a duplication in numbering, reads as follows:

8 A. The Supreme Court shall establish a Judicial Performance
9 Evaluation Council (JPEC) which shall administer the process for
10 reviewing the performance of judicial officers. The JPEC shall
11 review survey results according to the judicial performance
12 standards established by Supreme Court Rules and compile a report.

13 B. The report of the JPEC shall be provided to the Chief
14 Justice for distribution to the Oklahoma Supreme Court. Upon
15 receipt of the JPEC Report, the Supreme Court shall conduct a full-
16 scale, de novo examination and determine whether each individual
17 judge has or has not sufficiently met the judicial performance
18 standards.

19 SECTION 4. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 1674 of Title 20, unless there
21 is created a duplication in numbering, reads as follows:

22 A. The Supreme Court shall adopt and administer for all
23 intermediate appellate judges and district court judges, a process
24 established by court rules for evaluating judicial performance. The

1 rules shall include written performance standards and performance
2 reviews which survey opinions of persons who have knowledge of the
3 judge's performance and shall include self-evaluation by the judge.
4 Such process shall be made available to the Governor, the Speaker of
5 the Oklahoma House of Representatives, and the President Pro Tempore
6 of the State Senate.

7 B. The Supreme Court shall establish rules for improving
8 judicial performance and may include programs determined to be
9 appropriate for judges who need improvement in achieving judicial
10 evaluation standards. The Supreme Court, at any time, may refer an
11 evaluation report to the Council on Judicial Complaints. Such
12 report shall be made available to the Governor, the Speaker of the
13 Oklahoma House of Representatives, and the President Pro Tempore of
14 the State Senate.

15 C. Information received from the evaluation surveys shall
16 remain confidential except as provided in this section. If a
17 judicial officer fails to achieve an overall satisfactory judicial
18 evaluation by the Supreme Court in the second of two consecutive
19 evaluations, or purposely fails to complete assigned programs or the
20 self-evaluation, the judge's right to confidentiality shall be
21 waived, and the failure of that judicial officer to meet the
22 standards set forth in Supreme Court Rules shall be made publicly
23 available on the Supreme Court's website.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1675 of Title 20, unless there is created a duplication in numbering, reads as follows:

The Supreme Court shall prepare an annual report on the implementation of the performance evaluation program beginning December 31 of the year following the effective date of this act and shall distribute the report to the Governor, the Speaker of the Oklahoma House of Representatives, the President Pro Tempore of the Oklahoma State Senate, and the chairpersons of the House and Senate judiciary committees. The annual report on judicial performance evaluation shall be posted on the Supreme Court website.

The annual report shall include, but is not limited to, the number of evaluations performed for each level of judicial officers, the percentage of responses received, and a summary of the overall evaluation results and of all actions taken to address inadequacies and deficiencies.

SECTION 6. This act shall become effective November 1, 2025.

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